

9th City Council
43rd Regular Session
Series of 1988

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY, NOVEMBER 25, 1988.

PRESENT:

Councilor Antonio S. Castillo, Acting Presiding Officer
Councilor Luis C. Bonguyan
Councilor Bonifacio E. Militar
Councilor Alexis C. Almendras
Councilor Leonardo R. Avila, III
Councilor Nilo G. Abellera
Councilor Aristeo R. Albay
Councilor Antonio H. Vergara
Councilor Gerardo G. Nograles
Councilor Valentino C. Banzon
Councilor Diosdado A. Mahipus
Councilor Tomas Monteverde, Jr.
Councilor Liborio V. Lumain
Councilor Danilo C. Dayanghirang
Councilor Senforiano B. Alterado
Councilor Jaime Q. Rodriguez
Councilor Gerazon N. Malanyaon
Councilor Cesar G. Robillo
Councilor Renato S. Bangoy
Councilor Agosto P. Fuentes
Councilor Victorio S. Advincula
Councilor Guillermo G. Saldaña
Councilor Shane L. Dolor
Councilor Rafael A. Reyes, Jr.

ABSENT:

Vice Mayor Dominador B. Zuño, Jr.
Councilor Teofilo M. Venus (OB-Zamboanga City)
Councilor Teodorico T. Tinio (OB-Manila)

RESOLUTION NO. 1068

The 2nd Indorsement dated November 3, 1988 of the Committee on Laws & Ordinances returning to the Sanggunian the proposed Ordinance regulating fishing and/or fisheries in the City of Davao and for other purposes with amendments was presented for consideration and appropriate action of the Body.

Councilor Liborio V. Lumain moved for the approval of the proposed Ordinance regulating fishing and/or fisheries in the City of Davao and for other purposes, as amended.

After careful deliberation, on motion of Councilor Liborio V. Lumain, co-sponsored by Councilors Nilo G. Abellera, Senforiano B. Alterado, Aristeo R. Albay, Danilo C. Dayanghirang, Shane L. Dolor, Agosto P. Fuentes, Gerazon N. Malanyaon, Gerardo C. Nograles, Cesar G. Robillo, duly seconded jointly by Councilors Agosto P. Fuentes, Antonio H. Vergara and Danilo C. Dayanghirang, it was

Resolution No. 1068, Ordinance No. 116,
series of 1988, cont'd.:

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance entitled:

ORDINANCE NO. 116

AN ORDINANCE REGULATING FISHING AND/OR FISHERIES IN THE CITY OF DAVAO AND FOR OTHER PURPOSES.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

SECTION 1.- This Ordinance shall be known as the BASIC FISHERY ORDINANCE OF DAVAO CITY and shall be enforced in conjunction with other pertinent laws, decrees, orders, rules and regulations on fishing and/or fisheries which have been promulgated or which may be promulgated regarding the matter;

SEC. 2.- Municipal waters. - For the purpose of this Ordinance the words "municipal waters" include not only streams, lakes and tidal waters included within the City of Davao, not being the subject of private ownership and not comprised with the national parks, public forests, timber lands, forest reserves, or fishery reserves, but also marine waters included between two lines drawn perpendicular to the general coastline from point where the boundary lines of the City touch the sea at low tide and a third line parallel with the general coastline and three nautical lines from such coastline. Where the coastline of the City is so situated that there is less than six nautical miles from the opposite coastline which belong to another municipality, the third line shall be a line equidistant to the coastline of the City and the coastline of the opposite shore belonging to the different municipality.

SEC. 3.- License permit, fishery grant. - shall be unlawful for any person, cooperative, partnership, association or corporation to take or catch fish or other aquatic products by means of net, traps, or other fishing gears within the municipal waters of the City of Davao or by means of fishing boats or vessels three tons gross or less provided with the necessary license permit issued for the purpose by the City Treasurer of Davao. It shall be likewise illegal for any person, cooperative, partnership, association or corporation to operate fish corrals or oyster culture beds, or take or catch "bangus" fry or fry of other species for propagation within the jurisdiction of the City of Davao without first securing a grant from the City of Davao as provided for by law and this Ordinance.

Resolution No. 1068, Ordinance No. 116,
series of 1988, cont'd.:

SEC. 4.- Persons eligible for fishing and/or fishery privileges. - The following are, under this Ordinance, eligible for fishing and/or fishery privileges:

- a) Citizens of the Philippines
- b) Cooperatives, partnerships, associations or corporation duly registered or incorporated under the laws of the Philippines and authorized to transact business in the Philippines, and at least sixty per centum (60%) of whose capital stock belongs wholly to citizens of the Philippines.

It shall be unlawful, for persons, cooperatives, partnerships, association or corporation not qualified by law and this Ordinance to engage, personally or through other persons, in fishing, or catching or collecting aquatic products in the municipal waters within the jurisdiction of the City.

SEC. 5.- Division and classification of municipal waters. - The municipal waters within the jurisdiction of this city shall be divided and classified in accordance with map hereto attached as Annex "A" forms an integral part of this Ordinance.

SEC. 6.- Government Fry Bangus Reservation. - In the zoning and classification of municipal waters for purposes of awarding, through public bidding, areas for the construction or operation of fish corals oysters culture beds or the gathering of fry, this municipality/city hereby sets aside not more than one fifth (1/5) of the area earmarked for the gathering of fry in Zone 3 within its municipal waters under Section 5 of this basic fishery ordinance as may be designated by the Bureau of Fisheries and Aquatic Resources as Government "Bangus" fry reservation. To this effect, the Regional Director or his duly authorized representative of Fisheries Regional Office No. XI may be consulted on this matter to choose which among the number of zones enumerated under Section 5 can be set aside by the Sangguniang Panlungsod of Davao City, as government "Bangus" fry reservation.

SEC. 7.- Exclusive fishery privileges: Operating fish corals or oyster culture beds, or the catching of "bangus" fry or fry of other species for propagation shall be considered as exclusive fishery privileges which shall be granted to duly registered associations and/or cooperatives whose members are residents of the area where the operation of fish corals or oyster culture beds or the

Resolution No. 1068, Ordinance No. 116,
series of 1988, cont'd.

catching of "bangus" fry or fry of other species for propagation is located, upon payment of license fees at the rates prescribed in Section 8 of this Ordinance. Provided however, that if there is no such duly registered association and/or cooperatives in the area, the exclusive fishery privileges shall be granted to the highest bidder in a public auction held in accordance with the provisions of this Ordinance.

SEC. 8.- Issuance of individual license in case no bidders opt to lease fishing zones. If after two notices for the grant for exclusive fishery rights through public auction no interested bidders opt to lease any fishing zone within the municipal waters, the Sangguniang Panlungsod is authorized to grant the privilege of erecting fish corrals, operating oyster culture beds, or catching "Bangus" fry or "kawag-kawag" within a definite area or portion of the municipal waters to individuals upon payment of license fees therefor at the rates not exceeding those fixed hereunder:

(1) Fish corrals erected in the sea:	Annual fee
Less than 3 meters deep - - - - -	P 45.00
3 meters deep or more but less than 5 meters deep - - - - -	90.00
5 meters deep or more but less than 8 meters deep - - - - -	300.00
8 meters deep or more but less than 10 meters deep - - - - -	540.00
10 meters deep or more but less than 15 meters deep - - - - -	750.00
15 meters deep or more - - - - -	1,200.00
(2) Operation of Oyster culture beds:	
Per hectare - - - - -	50.00
(3) Catching "Bangus" fry or "Kawag-kawag"	
Less than 1,000 square meters - - - - -	500.00
1,000 sq. m. or more but less than 2,000 sq. m. - - - - -	800.00
2,000.00 sq. m. or more but less than 4,000 sq. m. - - - - -	1,200.00
4,000. sq.m. or more but less than 6,000 sq. m. - - - - -	2,200.00
6,000 sq. m. or more but less than 8,000 sq.m. - - - - -	3,000.00
8,000 sq. m. - - - - -	4,000.00

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series of 1988. cont.'d.:

(4) Fish Corrals inland fresh waters:

With an area of less than 500 sq. m. - - - - -	P 150.00
With an area of 500 sq. m. or more but less than 1,000 sq. m. - - - - -	300.00
With an area of 1,000 sq. m. or more but less than 5,000 sq. m. - - - - -	540.00
With an area of 5,000 sq. m. or more but less than 10,000 sq. m. - - - - -	750.00
With an area of 10,000 sq. m. or more - - - - -	1,200.00

A. For the catching or taking of Bangus Fry. Minimum Rental

1.- Zone for Bangus Fry Catching:

Zone 1 - From point 1 to point 2 or from Inawayan River to Daliao Creek - - - - -	P 5,000.00
Zone 2 - From point 2 to point 3 or from Daliao Creek to Talomo River - - - - -	10,000.00
Zone 3 - From point 3 to point 4 or from Talomo River to Davao River - - - - -	5,000.00
Zone 4 - From point 4 to point 5 or from Davao River to Agdao Creek - - - - -	5,000.00
Zone 5 - From point 5 to point 6 or from Agdao Creek to Sasa Creek - - - - -	5,000.00
Zone 6 - From point 6 to point 7 or from Sasa Creek to Panacan River - - - - -	5,000.00
Zone 7 - From point 7 to point 8 or from Panacan River to Mahayag Creek - - - - -	5,000.00
Zone 8 - From point 8 to point 9 or from Mahayag creek to Lasang River - - - - -	General Bangus Fry Reservation

B. Erection of Fish corral.

This fishing activity shall be allowed within zone 1 to 8 provided that the same shall be located at a depth 3 fathoms at lowest tide.

SEC. 9 - Application for exclusive fishery privileges mentioned in the proceeding section shall be made on official form duly approved by the Sangguniang Panlungsod.

SEC. 10 - To whom to submit application. - All applications shall be forwarded to the City Mayor. Upon receipt of the application, the City Mayor shall satisfy himself that the license applied for will not prejudice public interest and that the portion or area for which an application for lease has been presented is not covered by any subsisting lease.

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series of 1988, cont'd.:

SEC. 11.- Committee on Auction - A committee on auction is hereby created to compose of the City Treasurer, as Chairman and two members of the Sangguniang Panlungsod, as members. (In the composition of the Committee on Auction, the office of the City Treasurer should be represented by the Treasurer. Membership in said committee is entirely within the discretion of the Sangguniang Panlungsod.)

SEC. 12.- Publication of Notice.- The Committee on Auction shall advertise notice for sealed bids for exclusive fishery privilege in areas or zones of the municipal waters available for erecting fish corrals, or construction or operating oysters species for propagation by posting said notice in a newspaper published in the locality, if any, for a period of not less than fifteen (15) days.

SEC. 13.- Time and place of Auction. The Sangguniang Panlungsod shall, in a resolution, provide for a notice calling for sealed bids for the exclusive fishery privileges granted under Section 29 (a) of Presidential Decree No. 704, specifying the time and place of the auction, the amount to be deposited before an individual or an entity is entitled to participate, the procedure to be followed by the committee on Auction before any exclusive privilege is granted and the bond as guaranteed of good faith and for satisfactory compliance with the terms of the lease or grant. The bond shall be in cash or in real estate situated within the Philippines or by surety company authorized for the purpose in an amount not less than two years rental.

SEC. 14.- Municipal Concessions and leases concerning fisheries. No lease or concession granted by the Sangguniang Panlungsod under authority of an ordinance approved pursuant to Section 4 of Presidential Decree No. 704 concerning fishing or fisheries in streams, lakes, rivers, inland and or municipal waters shall be valid and enforceable unless the Secretary of Natural Resources, upon recommendation of the Director of Fisheries and Aquatic Resources, approved the same.

SEC. 15.- License Permit. - The privileges of taking or catching fish in the municipal waters of this City with nets, traps or other fishing gears with or without using therefor fishing boats or vessels three tons gross or less shall be granted under ordinary license permit issued by the City Treasurer to any person, cooperative

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series of 1988, cont'd.:

partnership, association or corporation qualified under Section 4 of this Ordinance upon payment of the corresponding license permit fee required therefor in the following:

GENERAL SCHEDULE OF LICENSE FEE

Item No.	Kind of fishing gear (Such as nets, traps, or other fishing gears commonly used in locality)	License 1 per year (Reasonable license fees of not more than P50.00)
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Vernacular in Bicol, Cebu, Palawan)

1. Fisherman using nets:

a) Bancuerna	P. 30.00
b) Fanki	30.00
c) Pabbas	30.00
d) Largarete	30.00
e) Sarap	20.00
f) Panapao	20.00

2. Fisherman using traps:

a) Ansag	8.00
b) Antol	8.00
c) Baba big (panggal)	8.00
d) Bobo small	4.00
e) Dumpil	12.00
f) Kutong	8.00
g) Pasgong	8.00

3. Fisherman using hook and line:

a) without light	5.00
b) with torch used in fishing	8.00
c) with Petromax used in fishing	12.00

4. Fisherman using other fishing gears:

a) Bahan	20.00
b) Baling	20.00
c) Bocatot padarao	50.00
d) Sahid	6.00
e) Laya	6.00
f) Anud	6.00
g) Sagiwsiw	6.00
h) Patuayan	20.00
i) Lukayan	20.00
j) Lukod	12.00

NOTE: Fish nets should not be less than two centimeters when stretched.

Provided, that no other fee shall be collected from fishermen duly licensed by another municipality unless the license fees paid by them in the municipality are less than those prescribed above, in which case the difference between the two annual fees may be collected. Provided, further, that fishing boats of more than three tons gross and fishermen licensed by the National Government shall not be subject

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series of 1988, cont'd.:

to the requirements of this Ordinance, especially the payment of municipal license tax, fee or charge. Provided, furthermore, that the residents of this municipality who have not been granted license for commercial fishing shall be allowed to fish in municipal waters for their home consumption: Provided, finally, that it shall be beyond the power of this Sangguniang Panlungsod to impose a license for the privilege of gathering marine mollusca or the shell thereof, for pearling boats and pearl divers or for prospecting, collecting, or gathering sponges or other aquatic products, or for the culture of fishery/aquatic product; provided, lastly, that they shall not fish within two hundred (200) meters from any fish corral operated under exclusive privilege granted by the City in accordance with this Ordinance.

License permits issued under this Section shall be valid for a year in which they are issued.

SEC. 16.- Restriction on baby trawls using fishing boats of three (3) tons gross or less.- Baby trawls using fishing boats of three (3) gross tons or less may operate in areas four (4) fathoms deep or more if authorized by existing municipal ordinance duly approved by the Secretary of Natural Resources.

SEC. 17.- Report of this caught. Any individual or entity who has obtained a fishery grant or license to take or catch fish in the municipal waters of the municipality shall submit to the City Treasurer of the municipality wherein he is fishing within ten (10) days for each month a monthly report in triplicate copies showing the kind, quantity and value, of fish caught during the month: Provided, that this Sangguniang Panlungsod shall furnish the Bureau of Fisheries and Aquatic Resources, for statistical purposes on forms which shall be furnished by the Bureau such information and data on fishery matters as are reflected in such forms.

SEC. 18.- Restriction.- Licenses and permits issued on contract executed under this Ordinance shall contain provisions to the effect that:

- a) No fish corral or "Baklad" shall be constructed within two hundred (200) meters of another fish corral in marine fisheries or one hundred (100) meters in fresh water fisheries unless they belong to the same licensee

Resolution No. 1068, Ordinance No. 116,
series of 1938, continued:

- grantee, but in no case shall the distance be less than sixty (60) meters apart, except in waters less than two (2) meters deep at low tide, or less previously approved by the Minister of Natural Resources.
- b) Fish corrals shall be entirely opened during closed season period or period established by the Minister of Natural Resources for the free passage of fish to enable a considerable number to reach the spawning grounds.
 - c) Nothing in the license shall be construed as permitting the lessee or licensee, granted or permittee to undertake in any stream or lake flowing through or adjoining the fish corral, or impede the flow of the tide to and from the area wherein the lessee, or licensee, grantee or permittee is granted a fishery privilege.
 - d) The licensee agrees unconditionally to comply with all the laws, decrees, orders, rules and regulations governing fishing now or which may later be promulgated.
 - e) The licensee assumes responsibility for any and all the acts of his agents and employees of the contractors connected with his fishing operations
 - f) Failure to pay any or file a bond which due as prescribed in the permit, license, contract or regulation shall be sufficient reason for the cancellation of the license, permit or contract.
 - g) The licenses and permits issued are non-transferrable. Should the license and permit be transferred, the same would be automatically cancelled.

SEC. 19.- Additional condition in the contract of Lease.-
The Contract of Lease to be executed by and between the City and the Highest winning bidder for the grant of the exclusive fishery privileges under this Ordinance shall contain the following additional terms and conditions pursuant to Presidential Decree No. 1585.

- a) That when the national interest so requires, the President of the Philippines may review, amend, modify, revise, rescind or revoke any such contract, concession, license, permit, lease or similar privilege or any condition or provision therein;

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series of 1988, cont'd.:

- b) That upon the recommendation of the government agency or instrumentality concerned with the administration of any such contract, concession, license, permit, lease or similar privilege, the President may, pending the conduct of appropriate hearing, summarily suspend and order the cessation of all activities and operation under the contract, concession, license, permit, lease or similar privilege for violation of any of the conditions or provisions therein of any conditions prescribed in duly issued rules and regulations of the administering government agency or instrumentality.
- c) The Contract of Lease for the grant of exclusive fishery privileges is non-transferrable. In the event the grantee sub-leases or allows any person other than his agent to operate the exclusive fishing privileges, the same would be automatically cancelled.

SEC. 20.- Penalty - Any individual or entity found violating any of the provisions of this Ordinance shall be punished for each offense by a fine not less than two hundred pesos but not exceeding one thousand pesos, or imprisonment of not less than ten days but not exceeding six months, or both such fine and imprisonment in the discretion of the court.

SEC. 21.- Repeal. - Any existing Ordinance and regulations or parts thereof which are in conflict with this Ordinance are hereby repealed.

SEC. 22.- Effectivity - This Ordinance shall take effect upon the approval of the Secretary of Natural Resources.

ENACTED: November 25, 1988.

CARRIED, By a majority of seventeen (17) affirmative votes.
(Note: Councilors Almenaras, Avila, Banzon, Reyes and Rodriguez were out when the votes were taken.) Abstained: Councilor Bonguyan.

APPROVED:


ANTONIO S. CASTILLO
City Councilor
Acting Presiding Officer

ATTESTED:


ANDRES B. ABRASALDO, JR.
Acting Secretary

Sangguniang Panlungsod
av/esa

APPROVED: _____, 1988

ATTESTED:

RODRIGO R. DUTERTE
Mayor, City of Davao

BENJAMIN C. DE GUZMAN
City Secretary - Designate